

HOUSE No. 1154

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to insurance coverage of mobile integrated health.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/15/2025</i>

HOUSE No. 1154

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 1154)
of Michael J. Finn relative to insurance coverage of mobile integrated health. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to insurance coverage of mobile integrated health.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17R the following new section:-

3 Section 17S. The group insurance commission and any carrier as defined in section 1 of
4 chapter 176O or other entity which contracts with the commission to provide health benefits to
5 eligible employees and retirees and their eligible dependents shall not decline to provide
6 coverage for medical, behavioral or health care services solely on the basis that those services
7 were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in
8 a mobile integrated health care program approved by the department of public health pursuant to
9 chapter 111O. Medical, behavioral or health care services delivered by way of an approved
10 mobile integrated health care program shall be covered to the same extent as if they were
11 provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of
12 payments for otherwise covered services shall not be reduced on the grounds that those services
13 were delivered by a health care provider participating in an approved mobile integrated health

care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 2. Chapter 111O of the General Laws is hereby amended in section 2 by adding the following subsection:-

(c) MIH programs that are focused on behavioral health services shall not be subject to application and registration fees.

SECTION 3. Chapter 118E of the General Laws is hereby amended by inserting after section 10N the following new section:-

Section 10O. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third party administrators under contract to a Medicaid managed care organization, the Medicaid primary care clinician plan, or an accountable care organization shall not decline to provide coverage for medical, behavioral or health care services solely on the basis that those services were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care

provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 4. Chapter 175 of the General Laws, as so appearing, is hereby amended by inserting after section 47PP the following new section:-

Section 47QQ. Any policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, shall not decline to provide coverage for medical, behavioral or health care services solely on the basis that those services were delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 5. Chapter 176A of the General Laws, as so appearing, is hereby amended by inserting after section 8QQ the following new section:-

Section 8RR. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed within the commonwealth shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 6. Chapter 176B of the General Laws, as so appearing, is hereby amended by inserting after section 4QQ the following new section:-

Section 4RR. Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as

defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 7. Chapter 176G of the General Laws, as so appearing, is hereby amended by inserting after section 4GG the following new section:-

Section 4HH. Any individual or group health maintenance contract that is issued or renewed shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral, or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health

care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.

SECTION 8. Chapter 176I of the General Laws, as so appearing, is hereby amended by inserting after section 13 the following new section:-

Section 14. An organization entering into a preferred provider contract shall not decline to provide coverage for medical, behavioral or health care services delivered by a health care provider, as defined in section 1 of chapter 111O, participating in a mobile integrated health care program approved by the department of public health pursuant to chapter 111O. Medical, behavioral, or health care services delivered by way of an approved mobile integrated health care program shall be covered to the same extent as if they were provided in a health care facility, as defined in section 1 of chapter 111O, and the rates of payments for otherwise covered services shall not be reduced on the grounds that those services were delivered by a health care provider participating in an approved mobile integrated health care program. A contract that provides coverage for care delivered may contain a provision for a deductible, copayment or coinsurance requirement for a service provided by a health care provider participating in an approved mobile integrated health care program as long as the deductible, copayment or coinsurance does not exceed the deductible, copayment or coinsurance applicable to delivery of the same services within a health care facility.